



Revisiting Indian Constitution

To begin with, read the chapter 13 of class VIII Social Studies textbook and complete the following tasks regarding the Indian Constitution:

- Some significant contributors to the Indian Constitution were:
_____ ; _____ ; _____ ; _____
- What are the basic ideals of Indian Constitution as reflected in its Preamble?

There was a turn of events and new political aspirations during the last few years of the British rule. That shaped the constitution. After 1936 Gandhi did not take much interest in politics, mostly confined to ashram. However he was guiding the events. Electoral politics began in 1936-37, and lasted with 1946 elections in which members of Constituent Assembly were elected. The same members have written the Constitution. The Congress remained a predominant political stream standing for the unified Indian Nationalism encompassing all social segments and it made huge strides in electoral politics also winning majority of seats in two elections.

This period is also significant because during the elections religious nationalism – Hindu and Muslim was born little earlier but strengthened as political force. Both Hindu Mahasabha and Muslim League contested the election propagated religious ideas as politics and ideology. The third stream peasant nationalism has grown as main opposition to the British and the princess under the Communist party. The fourth one was emanated from the self-respect movement of Ramaswamy Naikar in Tamil region and Non-Brahmin party of Bhaskar Rao Jadav in Maharashtra. In this backdrop Then All India Depressed Class movement developed and strengthened under Dr. B.R. Ambedkar.

In this backdrop The Hindu leader B.S. Munje made friendly association with outcast leaders. In February 1932 what is known as M.C. Rajah- B.S. Munje Pact was signed in support of the joint electorate with Hindus. And finally on the pressures of British functionaries including the then Viceroy, Ambedkar signed the Poona Pact with Gandhi in 1932. The Depressed Class issue thus became part of the national agenda and nation's concern. The DCs became part of nationalist politics. The DC leaders' agenda came to prominence on the national political agenda.

Many more such organizations came into being in different parts of the country in Punjab and Bengal. The temple entry movements were undertaken and further visiting the untouchable's residential quarters as part of the national movement adopted. In this scenario, national movement was not meant just the independence from the British but integration of the lower orders of the society into nationalist politics.

Ambedkar, in this new spirit started a new party All India Scheduled Caste Federation in 1942. M.C. Rajah who was very close to Gandhi disappointed with the Congress Governments joined the Federation. Sarat Chandra Bose brother of Subhas Chandra Bose supported this movement. It indicates that the caste question assumed importance thus Ambedkar has become national leader with issue of the Depressed Class/Scheduled Caste. Ambedkar was considered to be a leader of national stature. Ambedkar became the sole representative of Scheduled Castes, and that has become an issue on par with Muslim question. The British Government and its officials had recognized Ambedkar as legitimate representative of the SCs and caste question in India.

In Special Scheduled Caste Political Conference held in Allahabad in December 1942 Ambedkar declared that India was not a nation but constellation of nations warning the British and Congress that the Scheduled Caste would have their specific identity. Ambedkar thus learnt to communicate with the top dominant nationalist leadership of the country without sacrificing his intended politics.

In this debate in 1943 the Secretary of State for India opined that Ambedkar emerged a national leader and said Ambedkar was “the right and only proper representative of the Depressed Classes”. In November 1944 a Non-Party Conference was held under Tej Bahdur Sapru to discuss the basis of future constitution of India. It had invited Ambedkar to send a representative to be on the sub-committee on par with other parties.

Further in May 1945 Ambedkar came to the dominant nationalist stance saying that Constitution should be “framed by Indians for Indians with voluntary consent of Indians”. At the same time he declared that “The Scheduled Castes stand for the freedom of India and not for the Congress-High class Hindu rule”. At the same time he categorized the people into “servile classes” and “governing classes”. That means he divided people into social justice forces and the other Indians. He stepped up his battle opening channels with mainstream nationalist politics and emerging only sole leader with powerful backing of various social identities groups. Independence has become an immediate issue and nation was in mood to attain independence. Dr. Ambedkar too was interacting with the British and national leaders. Even in this scenario political parties like Muslim League, Hindu Mahasabha had opened dialogue with him. This political turn had impacted the Constitution making.

The British rulers under these circumstances agreed to constitute a Constituent Assembly. Elections have come to elect members to CA through indirect elections with limited franchise. The CA was constituted in July 1946 with 296 members from all provinces. The Congress won 208 of 296 allotted to the provinces. Earlier in Provincial elections in December 1945 Congress became victorious. The Congress in this background clearly expressed its intention to behave like “mirror of the nation” in Nehru’s words. Within the Congress the luminaries Jawaharlal Nehru, Sardar Patel, Rajendra Prasad, and Moulana Abdul Kalam Azad emerged prominent leaders of Constitution making. C. A. was constituted with Alladi Koppu Swamy Iyyar, N. Gopalaswamy Iyyengar and B. R. Ambedkar as experts on legal issues. Ambedkar had many advantages he was historian, economist and expert of law and constitutions of prominent countries, apart from this he emerged a social justice ideologue and politician with stature on par with top Congress luminaries. And above all he brought in the social justice turn in to the nationalism. Thus he becomes a most suitable person to head the drafting committee. Therefore the constitution has to focus on social reform and renaissance. Dr. Ambedkar was needed despite lost the election, but entered the CA from Bengal and later from Bombay.

The Constituent Assembly, thus was constituted, agreed that it had two objectives first was to attain independence and freedom. The second was social revolution i.e. freedom from all sorts of oppressions. S. Radhakrishnan proposed 3rd objective socio-economic revolution a transition from primitive rural economy to scientific and planned agriculture and industry. Rural handicrafts and peasant economy based economic planning village based election to State legislature and Parliament were discussed but the C.A members agreed upon only modern industry based economy and British type of party based elections parliamentary system. All members had agreed that India would become one political nation with one constitution and flag.

On the whole social justice agenda was accepted by the members. After constituting CA Jawaharlal Nehru moved Objectives Resolution setting nation’s agenda for social justice. He stated that primarily objective was - social justice to emancipate the Depressed Classes socially, economically and politically. Root cause of this was in Objectives Resolution it was product of 1940s turn in people’s movement it was a new dimension of nationalism. Religious tolerance and equality of all religions was the basic crux of the constitution. The events, movements and ideologies became part of the nationalism, the same entered into the constitution.

15.1 Objectives Resolution

Objectives resolution was the basis to specify the basic character of the constitution. On the basis of last few years of nationalist stances Nehru came

to the decision about the needs of various existential groups to make India a nation.

15.2 The Making of Indian Constitution

The Constitution of India was prepared and adopted by the Constituent Assembly. This was the culmination of the long struggle of the Indian people for freedom from British colonial rule. As the British government decided to give freedom to the people of India, a new Constitution was needed through which the people of India could rule themselves and set long term objectives for themselves.

For this purpose, Constituent Assembly was formed in 1946, following the election to the provincial assemblies. The Constituent Assembly members were elected indirectly by the members of the provincial assemblies. The Cabinet Mission appointed in 1946 allotted seats to each Province and each Princely State or group of States. Accordingly, Provinces or areas under direct British rule elected 292 members and all Princely States together elected 93 members. The plan also guaranteed that the seats in each Province had members from the major communities in India : Hindus, Muslims, Sikhs and others, in proportion to their respective populations. The Council also ensured that 26 members from Scheduled Castes are represented in the Assembly. While elections were held

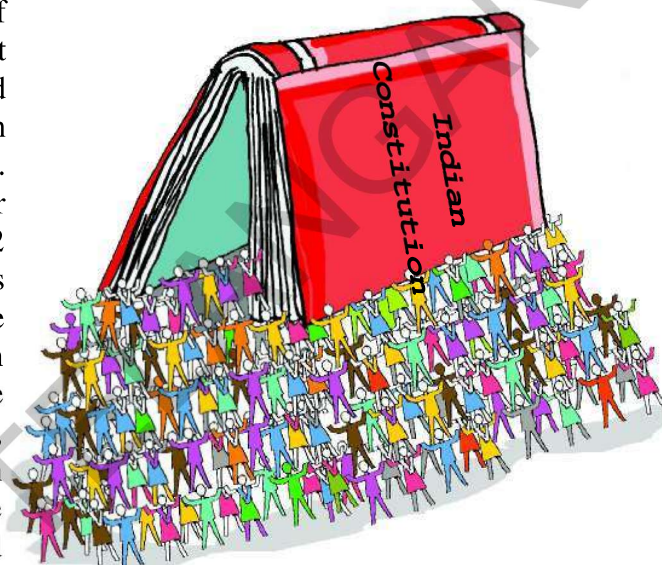


Fig 15.1 : We the people of India..... gives ourselves this Constitution.

in Provincial legislative houses, representatives of Princely States were identified through consultation. In all it had only fifteen women members. The Indian National Congress was the single largest party with 69% of all seats followed by the Muslim League which had most of the seats reserved for Muslims. In the beginning, it had members from all parts of British India and after 14 August 1947, as the country was partitioned between India and Pakistan, the members from Pakistan formed a separate Constituent Assembly for Pakistan.

As you can see, the Constituent Assembly (CA) was not elected through universal adult franchise, but indirectly and as such did not represent all sections of Indian society. Only about 10% of the population could vote in the provincial elections then. In fact, the members from the princely states were not elected at all and were decided through consultation with the concerned princely states. Such a decision was taken keeping in view the special situation that had arisen due to intense political activity on the eve of freedom and mounting tensions among the people. The princely states had not yet agreed to become part of the Indian Union and

many of them hoped to remain independent kingdoms. That is why their representatives were asked to join the Assembly. In the beginning, the Muslim League members did not attend the meetings, though they joined it later.

Even though the CA was not strictly representative, it took great care to consider all shades of opinions and give wide publicity to its own work so that all kinds of people could provide their inputs through letters, writings in the newspapers and other mediums. Jawaharlal Nehru made this significant statement in the Assembly on 13th December, 1946:

“ ... the future of India that we have envisaged is not confined to any group or section or province or other, but it comprises all the four hundred million people of India... there is a duty cast upon us and that is to bear the absentees in mind, to remember always that we are here not to function for one party or one group, but always to think of India as a whole and always to think of the welfare of the four hundred millions that comprise India. ...it seems to me, the time has come when we should, so far as we are capable of it, rise above our ordinary selves and party disputes and think of the great problem before us in the widest and most tolerant and most effective manner so that, whatever we may produce, should be worthy of India as a whole and should be such that the world should recognise that we have functioned, as we should have functioned, in this high adventure.”

A ‘Drafting Committee’ was set up under the chairmanship of Dr. B. R. Ambedkar and its task was to prepare the final draft taking in account all view points. Various important aspects of the Constitution were discussed in great depth and the Assembly gave broad directions on them. The final draft was presented before the CA for discussion and approval. The Constitution was finally adopted by the CA on 26th November 1949



Fig 15.2 : Discuss the idea of equality and justice as shown in this picture.



and it came into force on 26th January 1950. In the following section, we will read about some of the important debates in the CA in order to understand how some of these important provisions of Indian Constitution were arrived at.



- The Constitution of India begins with the statement, “We the people of India...”. Do you think this claim to represent all the people of India was justified?
- Do you think all the people in India can participate in the formulation of Constitution for the entire country? Was it important for all people to participate actively in this process or could it have been left to some wise people?
- If a Constitution for the entire school has to be drafted, who all should be involved in it and how?

15.2.1 Reading Constituent Assembly Debates

Dr. B.R. Ambedkar presented the draft of the Constitution before the CA in 1948. Read the extracts from his speech. These are recorded in the “Proceedings of CA of India, [Certain parts of the speech have been shortened and are marked with ...]

Dr. Ambedkar begins with the process by which the draft was prepared. As the Assembly was not elected by universal suffrage, see the steps taken to ensure maximum participation of members and also general public.

Thursday, the 4th November 1948 DRAFT CONSTITUTION

The Honourable Dr. B. R. Ambedkar ...: Mr. President, Sir, I introduce the Draft Constitution as settled by the Drafting Committee and move that it be taken into consideration.

The Drafting Committee was in effect charged with the duty of preparing a Constitution in accordance with the decisions of the Constituent Assembly, on the reports made by the various Committees appointed by it such as the Union Powers Committee, the Union Constitution Committee, the Provincial Constitution Committee and the Advisory Committee on Fundamental Rights, Minorities, Tribal Areas, etc. The Constituent Assembly had also directed that in certain matters the provisions contained in the Government of India Act, 1935, should be followed. ...I hope the Drafting Committee will be found to have faithfully carried out the directions given to it.

The Draft Constitution... is a formidable document. It contains 395 Articles and 8 Schedules. It must be admitted that the Constitution of no country could be found to be so bulky as the Draft Constitution.

The Draft Constitution has been before the public for eight months. During this long time, friends, critics and adversaries have had more than sufficient time to express their reactions to the provisions contained in it.



- Drafting Committee was appointed roughly ____ days after the Independence.
- The Assembly first appointed special committees on specific issues like, ____, ____, and ____.

Now, we will see how our Constitution draws from the experiences of other nations with regard to political organisation. In this presentation Dr. B.R. Ambedkar, the chairperson highlights the process of borrowing from other Constitutions. As you read through them, try to identify the institutional structure for parliamentary government provided in the draft. Remember that this presentation was being made one year after attaining Independence.



- The reports of these committees were discussed by the ____ and key decisions were taken by it.
- The ____ Committee headed by Dr. Ambedkar had to incorporate these decisions.
- The Draft also drew upon provisions of the ____ passed by the British Government.
- It was then made available to public for ____ months so that they could evaluate it and give their suggestions on it.
- In the Draft Constitution there were ____ Articles and ____ Schedules.

15.3 Parliamentary system

“A student of Constitutional Law, if a copy of a Constitution is placed in his hands is sure to ask two questions. Firstly, what is the form of Government that is envisaged in the Constitution; and secondly, what is the form of the Constitution? ...I will begin with the first of the two questions.

“In the Draft Constitution there is placed at the head of the Indian Union a functionary who is called the President of the Union. The title of this functionary reminds one of the President of the United States. But beyond identity of names there is nothing in common between the form of Government prevalent in America and the form of Government proposed under the Draft Constitution. The American form of Government is called the Presidential system of Government. What the Draft Constitution proposes is the Parliamentary system. The two are fundamentally different.

“Under the Presidential system of America, the President is the Chief head of the Executive. The administration is vested in him. Under the Draft Constitution the President occupies the same position as the King under the English Constitution. He is the head of the State but not of the Executive. He represents the Nation but does not rule the Nation. He is the symbol of the nation. His place in the administration is that of a ceremonial device or a seal by which the nation's decisions are made known. Under the American Constitution the President has under him Secretaries in charge of different Departments. In like manner the President of the Indian Union will have under him Ministers in charge of different Departments of administration. Here again there is a fundamental difference between the two. The President of the United States is not bound to accept any advice tendered to him by any of his Secretaries.



Fig 15.4: Dr. BR Ambedkar

The President of the Indian Union will be generally bound by the advice of his Ministers. He can do nothing contrary to their advice nor can he do any thing without their advice. The President of the United States can dismiss any Secretary at any time. The President of the Indian Union has no power to do so long as his Ministers command a majority in Parliament. ...”



- The powers given to Indian President are more similar to _____ of _____ than _____ of _____.
- Constituent Assembly visualised that the Indian President follows the advice of _____.
- What do you think was the difference between the position of the British King and the President of India?

15.4 Federalism

“Two principal forms of the Constitution are known to history - one is called Unitary and the other Federal. The two essential characteristics of a Unitary Constitution are: (1) the supremacy of the Central Polity [the word polity means system of government or political organisation] and (2) the absence of subsidiary Sovereign polities. Contrariwise, a Federal Constitution is marked: (1) by the existence of a Central polity and subsidiary polities side by side, and (2) by each being sovereign in the field assigned to it. In other words, Federation means the establishment of a Dual Polity [dual system of government central and state]. The Draft Constitution is, Federal Constitution in as much as it establishes what may be called a Dual Polity. This Dual Polity under the proposed Constitution will consist of the Union at the Centre and the States at the periphery each endowed with sovereign powers to be exercised in the field assigned to them respectively by the Constitution.

“This dual polity resembles the American Constitution. The American polity is also a dual polity, one of it is known as the Federal Government and the other States which correspond respectively to the Union Government and the State Governments of the Draft Constitution. Under the American Constitution the Federal Government is not a mere league of the States nor are the States administrative units or agencies of the Federal Government. In the same way the Indian Constitution proposed in the Draft Constitution is not a league of States nor are the States administrative units or agencies of the Union Government. Here, however, the similarities between the Indian and the American Constitution come to an end. The differences that distinguish them are more fundamental and glaring than the similarities between the two. ...

“The proposed Indian Constitution is a dual polity with a single citizenship. There is only one citizenship for the whole of India. It is Indian citizenship. There is no State citizenship. Every Indian has the same rights of citizenship, no matter in what State he resides. ...

“There is another special feature of the proposed Indian Federation which distinguishes it from other federations. A Federation being a dual polity based on divided authority with separate legislative, executive and judicial powers for each of the two polities is bound to produce diversity in laws, in administration and in judicial protection. Up to a certain point this diversity does not matter. It may be welcomed as being an attempt to accommodate the powers of Government to local needs and local circumstances. But this very diversity when it goes beyond a certain point is capable of producing

chaos and has produced chaos in many federal States. One has only to imagine twenty different laws - if we have twenty States in the Union - of marriage, of divorce, of inheritance of property, family relations, contracts, torts, crimes, weights and measures, of bills and cheques, banking and commerce, of procedures for obtaining justice and in the standards and methods of administration. Such a state of affairs not only weakens the State but becomes intolerant to the citizen who moves from State to State only to find that what is lawful in one State is not lawful in another. The Draft Constitution has sought to forge means and methods whereby India will have Federation and at the same time will have uniformity in all basic matters which are essential to maintain the unity of the country. The means adopted by the Draft Constitution are three

- (1) a single judiciary,
- (2) uniformity - in fundamental laws, civil and criminal, and
- (3) a common All-India Civil Service to man important posts.

“A dual judiciary, a duality of legal codes and a duality of civil services, as I said, are the logical consequences of a dual polity which is inherent in a federation. In the U. S. A. the Federal Judiciary and the State Judiciary are separate and independent of each other. The Indian Federation though a Dual Polity has no Dual Judiciary at all. The High Courts and the Supreme Court form one single integrated Judiciary having jurisdiction



- Under federal polity, there are more than one government and in the Indian context we have them at _____ and _____ levels. You belong to _____ state while you belong to _____ nation.
- Which type of Constitution gives more powers to the governments at the Centre?
- Which type of Constitution gives definite powers to both Central and State governments?
- In what ways are Indian states not “administrative units or agencies of the Union Government”?
- Why do you think did the framers of the Indian Constitution reject the idea of dual citizenship (of India and of the state)?

and providing remedies in all cases arising under the Constitutional law, the civil law or the criminal law. This is done to eliminate all diversity in all remedial procedures. Canada is the only country which furnishes a close parallel. The Australian system is only an approximation. [Explanation: In some federal countries, the Supreme court cannot over rule the judgements of the State courts relating to laws of the State. However, in India, the Supreme Court can hear appeals against the decision of any court and give judgement.]

“Care is taken to eliminate all diversity from laws which are at the basis of civic and corporate life. The great Codes of Civil & Criminal Laws, such as the Civil Procedure Code, Penal Code, the Criminal Procedure Code, the Evidence Act, Transfer of Property Act, Laws of Marriage, Divorce, and Inheritance, are either placed in the Concurrent List [or central list] so that the necessary uniformity can always be preserved without impairing the federal system.” [Explanation: The chapters on which law can be made are divided into Central list, State list, and Concurrent list. Only the Central government can make laws on the Central list and only the State Government can make the laws on the State list. Both the Central and the State Government can make laws on the Concurrent list. However, in case where a State makes a law contradictory, only the Central law will be valid.]



Fig 15.5 : An Aerial view of Republic Day from 1950's

“The dual polity which is inherent in a federal system as I said is followed in all federations by a dual service. In all Federations there is a Federal Civil Service and a State Civil Service. The Indian Federation though a Dual Polity will have a Dual Service but with one exception. It is recognised that in every country there are certain posts in its administrative set up which might be called strategic from the point of view of maintaining the standard of administration. It may not be easy to spot such posts in a large and complicated machinery of administration. But there can be no doubt that the standard of administration depends upon the calibre of the Civil Servants who are appointed to these strategic posts. Fortunately for us we have inherited from the past system of administration which is common to the whole of the country and we know what these strategic posts are.

The Constitution provides that without depriving the States of their right to form their own Civil Services there shall be an All India service recruited on an All- India basis with common qualifications, with uniform scale of pay and the members of which alone could be appointed to these strategic posts throughout the Union.” [Ambedkar is referring here to the creation of the Public Service Commission (IAS, IPS) through which most important officials are recruited both for the State and the Central Government.]



- Can you point out the main differences between Indian federalism and American federalism?
 - Does the Indian Constitution allow the states to have their own civil servants (officers)?
 - Are all officials of a state from the state’s civil services?
 - In America, the judiciary of the Central Government and the judiciary of the states are distinct and separate. In India, we have a judiciary in the centre and the states – Explain.

15.5 Examples of critiquing in Constituent Assembly debates

There were many criticisms of the draft Constitution – some like Maulana Hasrat Mohani argued that Constitution is merely a copy of the 1935 Act. It was reminded that during the freedom movement when Cabinet Mission visited India, political groups like INC demanded Universal Adult Suffrage and opposed 1935 Act. People like Damodar Swarup Seth, a socialist, pointed out that draft does not adapt from more recent Constitutions of the time like Soviet Union and ignores the centrality of villages in the Indian context. D S Seth also argued that members of the CA were not elected by adult franchise. Let us read them.

D S Seth: “Sir, our Indian Republic should have been a Union - a Union of small autonomous republics. ...The Union that would have been formed in our country in this way, would not have required so much emphasis on centralisation as our learned Dr. Ambedkar has laid. Centralisation is a good thing and is useful at times but we forget that all through his life Mahatma Gandhi emphasised the fact that too much centralisation of power makes that power totalitarian and takes it towards fascist ideals. The only method of safeguarding against totalitarianism and fascism is that power should be decentralised to the greatest extent. We would have thus brought about such a centralisation of power through welding of heart as could not be matched anywhere in the world.

But the natural consequence of centralising power by law will be that our country which has all along opposed Fascism - even today we claim to strongly oppose it - will gradually move towards Fascism....”



- How were the ideas of Seth and Draft Committee similar or different?
- Find out what form of autonomy is now being made available to villages after the 73rd amendment of the Constitution?

15.5.1 Examples of Debate on Fundamental Rights

In the context of right to equality, it was decided to legally put an end to the practice of ‘untouchability’. Let us read a part of the discussion on Fundamental Rights to understand the different view points.

Tuesday, the 29th April, 1947

Mr. President (The Hon’ble Dr. Rajendra Prasad) in the Chair.

Mr. Pramatha Ranjan Thakur: Sir, ... [A] point to which I wish to refer is in relation to clause 6 regarding ‘untouchability’ where it is said that-

“Untouchability in any form is abolished and the imposition of any disability only on that account shall be an offence.”

I do not understand how you can abolish untouchability without abolishing the very caste system. Untouchability is nothing but the symptom of the disease, namely, the caste system... Unless we can do away with the caste system altogether there is no use tinkering with the problem of untouchability superficially.

S. C. Banerjee: Mr. President, the word ‘untouchability’ actually requires clarification. We have been accustomed to this word for the last 25 years, still there is a lot of confusion as to what it connotes. Sometimes it means merely taking a glass of water and sometimes it has been used in the sense of admission of ‘Harijans’ into temples, sometimes it meant inter-caste dinner, sometimes inter-caste marriage. Mahatma Gandhi who is the main exponent of ‘untouchability’, has used it in various ways and on different occasions with different meanings. So when we are going to use the word ‘untouchability’, we should be very clear in our mind as to what we really mean by it. What is the real implication of this word?

I think we should make no distinction between untouchability and caste distinction, because as Mr. Thakur has said, untouchability is merely a symptom, the root cause is caste distinction and unless and until the root cause, that is caste distinction is removed, untouchability in some form or other is bound to exist

and when we are going to have an independent India, we should expect everyone to be enjoying equal social conditions.

Sri Rohini Kumar Chaudhury: ...[For] defining untouchability, it may be clearly stated that: 'Untouchability' means any act committed in exercise of discrimination on grounds of religion, caste or lawful vocation of life ...

Mr. K. M. Munshi: Sir, I oppose this amendment. The definition is so worded that if it is accepted, it will make any discrimination even on the ground of place of birth or caste or even sex 'untouchability'.

Mr. Dharendra Nath Datta : Sir, it seems to me that whether the definition suggested by Mr. Rohini Kumar Chaudhury is accepted or not, it is necessary that there should be some definition put in. Here it is said that 'untouchability' in any form is an offence. A magistrate or a judge

dealing with offences shall have to look to the definition. One magistrate will consider a particular thing to be untouchability, while another magistrate may hold a different thing to be untouchability, with the result there will be no uniformity on the part of the magistracy in dealing with offences. It will be very difficult for the judge to decide cases.

Moreover, untouchability means different things in different areas. In Bengal, untouchability means one thing, while in other provinces, it means an entirely different thing.

Mr. President, ... I take it that the Union legislature will define the word 'untouchability' so that the courts might prescribe proper punishment.

[Eventually, it was decided to leave the definition of untouchability out of the Constitution and leave it to the legislature to make appropriate laws in the future.]



- What are the differences of opinion that are being raised in the above debate?
- If you were given the choice to participate in the debate, what solution would you suggest?
- Do you think it was a good idea to leave the term undefined in the Constitution? Give reasons for your argument.
- Do you agree with the view that the Constitution should have put an end to all aspects of the caste system instead of just ending untouchability? How do you think could it have been done?

15.6 Constitution and 'social engineering'

The makers of Indian Constitution confronted the fact that Indian society was ridden with inequality, injustice and deprivation and was a victim of colonial policies which had exploited its economy. Thus, the Constitution had to facilitate social change and development. Jawaharlal Nehru said that the Constituent Assembly represents "the nation on a move throwing away the shell of its past political and possibly social structure and fashioning for itself a new garment in its own making".

The Constitution thus has many provisions facilitating social change. You have read about abolition of Untouchability. The best example of this is the provision for reservations for Scheduled Castes and Scheduled Tribes in the Constitution. The makers of the Constitution believed that the mere granting of the right to equality was not enough to overcome age-old injustices suffered by these groups or to give real meaning to their right to vote. Special constitutional measures were required to advance their interests. Therefore, the constitution makers provided a number of special measures to protect the interests of Scheduled Castes and Scheduled Tribes such as the reservation of seats in legislatures. The Constitution also made it possible for the government to reserve public sector jobs for these groups.

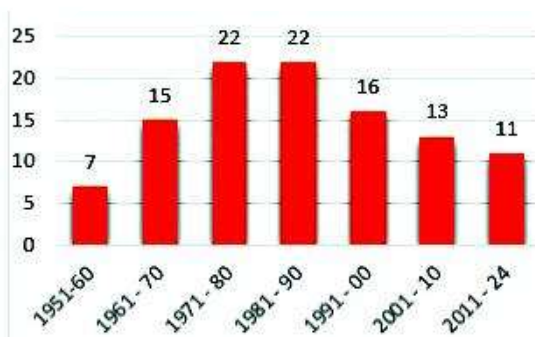
The Constitution also has in it the “Directive Principles of State Policy” which sets out the main social systems before the government. One important aspect of the social engineering is the problem of the right of minorities. The sad experience of suppression of Jewish minority in Nazi Germany weighed in the minds of the Constitution makers. They decided to give special protection to the minority community so that they don’t feel marginalised by the majority. One such right is the right of religious minorities to run their own educational institutions. Such institutions may even receive government funds.

15.7 The Constitution Today

The Constitutional makers were aware that laws will have to be amended from time to time. Thus, it laid down the provisions for amending the laws and the articles in the Constitution as well. Often laws can be made with approval of more than half the members in legislative houses.

However, amending the articles in the Constitution can be initiated only by the Parliament. It also needs the

approval of 2/3rd members in both the houses of parliament - Rajya Sabha and Lok Sabha. And some articles may be amended only with acceptance (or ratification) from the state legislature as well. It is further necessary that the President of the country also approves the new amendment bill like other laws.



Graph 1 : Since the Constitution was Came into force on 26th January 1950 till 2024 nearly 106 amendments were made.

Some major changes in the Constitution were made during 1970s. The first among them is inclusion of two words into the Preamble of the Constitution “Secular” and “Socialist”. Many words in the preamble like “Equality”, “Liberty”, “Justice” etc emphasised the values of secularism and socialism and hence, these words were added. The second major event in the life of Indian Constitution has been a Supreme Court judgement popularly known as Keshavanada Bharati case. It was held that even Parliament does not have the power to alter or destroy the basic features of the Constitution. The ideas covered in the Preamble carry the basic objectives of the Constitution. The Supreme Court has outlined the essential features in series of judgement. Some of the elements of the basic structure are : The Supremacy of the Constitution; The sovereignty of the country; Fundamental rights; Democratic form of government; Secular character of the Constitution; Federal Character of the Constitution; The mandate to build a welfare state etc.



What are the examples and explanations that you can identify with basic features of Indian Constitution?



Keywords

Drafting committee	Constituent Assembly	Preamble
Concurrent list	Unitary and Federal principles	Citizenship
Presidential and Parliamentary system		Amendment



Improve your learning



1. Find the odd one out:

- Indian Constitution adopts from experiences of freedom struggle
- Indian Constitution adopts from already existing constitutions
- Indian Constitution has remained the same since its drafting
- Indian Constitution provides principles and provisions for ruling the country

2. Correct the false statements:
 - There was unanimity of opinion on all provisions during CA debates
 - The makers of Constitution represented only certain regions of the country
 - Constitution provides certain provisions to amend articles in it
 - Supreme Court of India has said that basic features of Constitution may also be amended
3. Describe the unitary and federal principles of Indian government as discussed in the CA debates.
4. How does the Constitution reflect the political events of the time? Draw from previous chapters on freedom struggle.
5. What difference would it have made to the making of our Constitution if the Assembly had been elected through universal adult franchise?
6. Write a short note on basic principles of Indian Constitution.
7. How has the Constitution defined and changed political institutions in the country?
8. While Constitution provides basic principles it is the engagement of people with the system that brings in social change. Do you agree with this statement, give reasons.
9. Locate the following on the map of the world.
 - a) Nepal b) Japan c) Delhi d) USA
10. Observe the Bar graph given in page 226 and answer the following questions.
 - i) In which year the most number of constitutional amendments took place?
 - ii) How many more number of amendments took place in the decade 1971-80 when compared to 1961-70?
11. Prepare a pamphlet on the implementation of equality in your school.